

MASTER SOFTWARE LICENCE AGREEMENT

This Agreement is entered into on 1 August 2026 between Northwind Systems Ltd ("Licensor") and Acme Retail Inc ("Licensee").

1. GRANT OF LICENCE

Licensor grants Licensee a non-exclusive, non-transferable licence to use the Software for internal business purposes only.

2. TERM AND RENEWAL

The initial term is 36 months. This Agreement renews automatically for successive 36-month terms unless Licensee gives written notice at least 180 days before the end of the then-current term.

3. FEES

Fees increase by up to 12% at each renewal at Licensor's sole discretion. All fees are non-refundable. Late payments accrue interest at 18% a year.

4. INDEMNITY

Licensee shall indemnify, defend and hold harmless Licensor against all claims arising from use of the Software, without limitation of liability and without any cap on Licensee's obligations.

5. LIMITATION OF LIABILITY

Licensor's total liability is limited to the fees paid in the three months preceding the claim. Licensor excludes all liability for data loss, business interruption and consequential damages.

6. INTELLECTUAL PROPERTY

Any feedback, suggestions or configurations supplied by Licensee become the exclusive property of Licensor without compensation.

7. AUDIT

Licensor may audit Licensee's systems on 5 business days notice, at Licensee's expense if any underpayment above 2% is found.

8. TERMINATION

Licensor may terminate immediately for convenience. Licensee may terminate only for uncured material breach after a 60-day cure period.

9. GOVERNING LAW

This Agreement is governed by the laws of Delaware. Disputes are subject to binding arbitration in Wilmington, Delaware, waiving trial by jury.

10. ASSIGNMENT

Licensee may not assign this Agreement, including on a change of control, without Licensor's prior written consent, which may be withheld.